

AGREEMENT
BETWEEN
GEORGETOWN SCHOOL DEPARTMENT
AND
AMERICAN FEDERATION OF STATE, COUNTY AND
MUNICIPAL EMPLOYEES

AFL-CIO, MASS. PUBLIC COUNCIL 93, LOCAL 939

JULY 1, 2020 through JUNE 30, 2023

REPRESENTING CUSTODIANS

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This agreement is entered into by the Georgetown School Department, hereinafter referred to as the Employer, and the American Federation of State, County and Municipal Employees, AFL-CIO, Mass. Public Employees Council 93, and Local 939, representing Custodians, hereinafter referred to as the Union.

PREAMBLE

INTENT AND PURPOSE:

The general intent and purpose of this Agreement is in the mutual interests of Georgetown; to provide for the operation of our school buildings under methods which will further, to the fullest extent possible, the safety, welfare and health of the school children of the town under conditions which will insure economy of operation, quality and quantity of performance, cleanliness of buildings and protection of the property.

It is further the intention and purpose of the parties hereto that this Agreement provide an orderly collective bargaining relationship between the Employer and the Union; the establishment of an equitable and peaceful procedure for the resolution of differences; and the establishment of rates of pay, hours of work and other conditions of employment.

In recognition of the fact that the laws of the Commonwealth of Massachusetts vest responsibility to the people of Georgetown in the School Committee for the quality of education in, and the efficient and economical operation of, the Georgetown School Department, it is herein agreed that except as specifically and directly modified by express language in a specific provision of this AGREEMENT, that the Committee retains all rights and powers that it has or may hereafter be granted by law in managing the School Department and directly the work force and may exercise the same at its discretion without any such exercise being made the subject of a grievance except as expressly provided herein.

It is recognized that, in addition to other functions and responsibility, the Employer has and will retain the sole right and responsibility to direct the operations of the employees and in this connection to determine the methods, processes and type of work to be performed; the schedule of shifts and hours of work; and to select, hire and demote employees, including the right to make and apply rules and regulations of discipline, efficiency and safety. The Employer shall also have the right and responsibility to discharge or otherwise discipline any employees for just cause, to promote, and transfer, and to lay off because of lack of work or other cause unless otherwise hereinafter provided.

ARTICLE I

RECOGNITION

The Employer recognized the Union as the sole and exclusive bargaining agent for the purpose of establishing salaries, wages, hours and other conditions of employment for all custodians, matrons and maintenance employees of the Georgetown School Department, excluding the

Director of Buildings and Grounds and hereafter referred to as the supervisor and other supervisory employees of said school department.

The Employer will not aid, promote or finance any labor group or organization which purports to engage in collective bargaining, or make any agreement with any such group or individual for the purpose of undermining the Union or changing any condition contained in this AGREEMENT.

The district reserves the right to outsource custodial/maintenance in the event of any emergency or during a case of unforeseen circumstances that require contracting additional labor and/or contractors with specialized skills and equipment on a temporary basis.

Such agreement will be mutually agreed upon by the school district and the union and will not exceed a period of six (6) months unless all parties agree to an extension.

No outsourcing will be done to replace existing or routine custodial/maintenance duties.

ARTICLE II

UNION DUES AND INITIATION FEE

Employees may tender the initiation fee (if any) and monthly membership dues by signing the Authorization of Dues Form. During the life of this AGREEMENT and in accordance with the terms of the Form of Authorization of Check-Off of dues hereinafter set forth, the Employer agrees to deduct union membership dues levied in accordance with the Constitution of the Union from the pay of each employee who executes or has executed such form and remit the aggregate amount to the Treasurer of the union along with a list of employees who had said dues deducted. Such remittance shall be made monthly.

ARTICLE III

DISCRIMINATION AND COERCION

There shall be no discrimination by the Employer or agents of the School Department against any employee because of his activity or membership in the Union. The Employer further agrees that there will be no discrimination against any member for his adherence to any provision of this AGREEMENT or his refusal to comply with any order, which would violate this AGREEMENT.

ARTICLE IV

GRIEVANCE PROCEDURE

Definition: for the purpose of this AGREEMENT a grievance shall be defined as a complaint by an employee in the unit covered by this agreement, which involves an alleged violation or misinterpretation of a specific provision of this agreement.

Since it is important that grievances be processed as rapidly as possible, the number of days indicated at each level should be considered as maximum and every effort should be made to

expedite the process. The time limits specified may be extended only by prior mutual agreement.

Grievances shall be settled in the following manner:

Step 1. The Union Steward, with the aggrieved employee, shall take up the grievance or dispute with the employee's immediate supervisor within five (5) working days of the date of the grievance or his knowledge of its occurrence. The employee will provide a written statement of grievances citing specific language violations. The supervisor shall attempt to adjust the matter and shall respond to the steward within eight (8) working days.

Step 2. If the grievance still remains unresolved, it shall be presented to the Superintendent of Schools in writing within five (5) working days after the response of the Supervisor. After having received the grievance in writing, the Superintendent shall meet with the aggrieved employee(s) and/or a representative of the union and the steward within five (5) working days. The Superintendent shall respond in writing within fifteen (15) working days.

The number of days indicated in the above procedure may be extended by mutual agreement due to any absence of the parties to the procedure. Grievance involving disciplinary or discharge action shall be processed beginning at the second step.

Step 3. If the grievance is still not settled and it is related to non-personnel actions, it shall be presented to the School Committee at its next regular meeting. Grievance hearings will be conducted in executive sessions. The Committee shall hear the grievance and respond in writing to the Union within fifteen (15) working days.

Step 4. If the grievance is still unsettled, either party may, within twenty (20) working days after the reply of the School Committee, by written notice to the other, request arbitration.

ARTICLE IV-B

ARBITRATION

A. In the event either party elects to submit a grievance to arbitration, the arbitrator shall be selected according to and governed by the following procedure: The arbitrator is to be mutually selected by the Committee and the Union. If the Committee and the Union cannot agree, within seven (7) working days after written notice specified above of the intention to arbitrate then the party demanding arbitration shall within seven (7) working days thereafter, request the American Arbitration Association to provide a panel of arbitrators. Said arbitrator is then to be selected under the provisions of the Voluntary Labor Arbitration Rules now, or hereafter, in effect which shall also govern the procedure at the hearing.

B. The fees of the American Arbitration Association and of the arbitrators and the expense of any required hearings shall be shared equally by the Committee and the Union, but each party shall bear the expense of its representative, participants, witnesses, and for the preparation and representation of its own case.

C. The arbitrator's award shall be in writing and shall set forth his findings of fact with reasoning and conclusions. He shall arrive at his decision solely upon the facts, evidence, and

contentions presented by the parties through the arbitration proceeding. The arbitrator shall have no power to add to, subtract from, or modify any of the terms of this agreement, and in reaching his decision shall interpret the Agreement in accordance with the principle that there are no restrictions intended on the right or authority of the Committee other than those expressly set forth herein. Subject to the foregoing, the decision of the arbitrator shall be submitted to the School Committee and the Union and shall be final and binding upon the Committee, the Union and the Custodian or group of Custodians who initiated the grievance.

D. The parties may, but mutual agreement, submit more than one pending grievance to the same arbitrator.

ARTICLE V

SENIORITY

For the purpose of this article, seniority shall be considered the length of service of the employee's continuous service in the Georgetown Public Schools. Continuous services means the most recent period of unbroken service in the Georgetown Public Schools, provided that authorized leave of absence, military service, or lay off shall not be considered a break in continuous service for the purpose of establishing seniority rating.*

In the event that a member of another bargaining unit joins the custodial/maintenance contract, their accumulated benefits will carry over (sick leave and vacation) however, if there is a reduction in force, seniority will be calculated based on their time in the custodial/maintenance bargaining unit.

When determining choice of shift, the Superintendent or his/her designee will consider the following criteria:

1. Employee qualifications
2. Employee performance
3. Needs of district
4. Years of service

When all criteria are equal, the employee with the most years of service will be granted their request.

All temporary, part-time and permanent part-time employees will be let go first, before any permanent employees.

Qualifications being equal, the principle of seniority shall be strongly considered in cases of promotion within the bargaining unit and lateral transfers to open positions.

*All prior agreements with current employees in exception to this shall remain in effect.

ARTICLE VI

JOB POSTING AND BIDDING

When a position covered by this Agreement becomes vacant, such vacancy shall be posted within seven (7) days of occurrence of vacancy in a conspicuous place listing pay, duties and qualifications. The notice of vacancy shall remain posted for seven (7) days. Employees interested shall apply in writing within the seven-day period. Within seven (7) days of expiration of the posting period, the Superintendent of Schools will temporarily award the position to the most senior applicant qualified, as determined by the Superintendent who has final approval or disapproval of such appointment.

The successful applicant shall be given a one hundred and twenty calendar (120) day trial and training period in the new position at the applicable rate of pay. If at the end of the trial and training period it is determined by the Superintendent that the employee is not qualified to perform the work, he shall be returned to his old position and rate.

If it is not mutually agreed by the parties that an applicant is qualified, the Superintendent may fill the position outside the bargaining unit.

In addition, if the position is filled from outside the bargaining unit, all vacation benefits contained within the contract would begin to accrue following the 120 day trial and training period. Vacation benefits will be awarded for the trial and training period retroactive to the initial day of employment. This paragraph is applicable to any employee hired after July 1, 2002 and who has completed their 120 day trial and training period.

ARTICLE VII

HOURS OF WORK

The regular hours of work each day shall be consecutive, except for interruptions for lunch periods.

The workweek shall consist of five (5) consecutive eight (8) hour days, in a seven (7) day period for a total of forty (40) hours per week.

Each employee shall be scheduled to work a shift with regular starting and quitting times. Except for emergency situations; work schedules shall not be changed unless the changes are mutually agreed upon by the Union and the Employer.

For example: If an employee is scheduled to work a 7:00 AM – 3:00 PM shift, the shift cannot be changed to 8:00 AM – 4:00 PM without the agreement of the Union.

Between July 1st and the last week in August, employees may choose the option to work an alternative summer schedule. The summer hours shall consist of four (4) consecutive ten (10) hour days in a seven (7) day period for a total of forty (40) hours per week. For summer scheduling, each employee shall work on Tuesday, Wednesday, and Thursday; employees shall not be required to work on Monday or Friday at the election of the employee with the

understanding that the building will be covered and scheduling will be at the discretion of the Director of Buildings and Grounds.

Summer Hours Leave: All leave benefits will be converted into hours, based on the appropriate work week of 35-40 hours, for all employees on an approved four (4) day work week. In doing so, the parties acknowledge that no employee is subject to any loss or realize any gain in contractual benefits as a result of the change in calculation from days to hours, and that said change is made merely to ensure equal and accurate benefit accrual and to facilitate administration and accounting of benefits. If an employee wanted to take a week off for vacation then the forty (40) hours would calculate to five (5) vacation days. If an employee just wanted to take a single vacation day off, it would calculate to 1.2 vacation days used. The same would apply to sick and personal time.

Summer Hours Holidays: When the holiday falls on an employee's scheduled work day, the employee will only be scheduled to work his/her remaining three (3) days that week. The employee will work ten (10) hours on each of the remaining three (3) work days. When the holiday falls on a day when the employee is already scheduled to be off, the Director of Buildings and Grounds shall grant an alternate day off, in lieu of the holiday during the same pay period in which the holiday falls. On that day, the employee will be compensated for ten (10) hours of holiday pay. The employee will work ten (10) hours on each of the two remaining work days.

ARTICLE VIII

OVERTIME

Employees covered by this agreement shall be paid overtime at the rate of one and one-half times the regular rate of pay for work in excess of eight (8) hours in one day and forty (40) hours in one week, except for Sundays' when the rate of pay will be two (2) times the regular rate of pay for work in excess of eight (8) hours in one day and forty (40) hours in one week.

Any employee called back to work on the same day after having completed his assigned work and left his place of employment and before his next regular scheduled starting time, shall be paid at the rate of time and a half for all hours worked in recall. He will be guaranteed minimum of two (2) hours pay at time and one-half. Weekend and holiday overtime shall be a minimum of three (3) hours.

Overtime shall be equally and impartially distributed among all personnel who ordinarily perform such related work in the normal course of their work week.

The employer shall keep records of the overtime work, in cases of a grievance involving such records, they shall be subject to examination of the union representative or the shop steward.

Overtime shall be required, including Winter snow removal. If an employee will be out of town during the Winter months a five (5) day notice must be given to the Director of Buildings and Grounds or the employee will be held to the mandatory directive. There shall be no discrimination against any employee who declines overtime, however recognizing not everyone

will work the same amount of overtime, if shifts need to be filled, the employees scheduled for the least amount of time will be expected to work.

The school Principal and the Director of Buildings and Grounds shall have the responsibility of determining when a custodian is required for outside functions in school facilities with the understanding that if the facility is being used after hours, either an administrator or a custodian shall be present. The custodian in for this extra work will be paid time and one-half his regular rate for a minimum of two (2) hours (guaranteed minimum extra call-in pay). This condition shall be incorporated into the school use permit application so that all groups and/or organizations will be aware that they may be required to pay for this custodial service. While working overtime, the custodian may be assigned to work in an adjacent area. However, his primary concern shall be in his overtime area.

In lieu of overtime pay, employees may elect to receive compensatory time, at the rate of one and a half hours for every hour worked, not to exceed twenty-four (24) accumulated hours in a calendar year, to be used during the calendar year. There is no carry over or monetary buy back of unused days.

ARTICLE IX

UNION REPRESENTATIVES

A written list of Union representatives shall be furnished to the Employer immediately after their designation and the Union shall notify the Employer of any changes.

ARTICLE X

MEAL PERIODS

Employees who for any reason work beyond their regular quitting time in to the next shift a minimum of two (2) hours or more shall receive a meal break before they start to work on such next shift.

ARTICLE XI

VACATIONS

Employees shall earn and be granted vacations as follows:

- A. For one (1) year of service but less than five (5) years: two (2) weeks.
- B. For five (5) years of service but less than ten (10) years: three (3) weeks.
- C. For ten (10) years of service or more: four (4) weeks.
- D. Custodians currently with five (5) weeks of vacation shall be grandfathered with five (5) weeks of vacation.
- E. For 16 years of service four (4) weeks and one (1) day
For 17 years of service four (4) weeks and two (2) days
For 18 years of service four (4) weeks and three (3) days

For 19 years of service four (4) weeks and four (4) days
For 20 years of service five (5) weeks

Vacation time is non-cumulative. Vacation may be granted by mutual agreement of the Employer and the employee or by a posting system. However, if a conflict should arise between employees' vacation schedules, the senior employee shall be given preference. Employees shall use a minimum of 25% of their vacation days from July 1 through August 15 and use the remaining vacation days on demand with a ten (10) day notice, except for the three (3) school vacation weeks, when only one member of the bargaining unit will be eligible to take vacation time subject to seniority on a rotating basis. If a member who is eligible to use the vacation time only uses a portion of the school vacation week, the remaining portion shall be offered in accordance with the rotation list. Granting of said vacation will be at the discretion of the Superintendent of Schools or his/her designee.

Employees shall be allowed to carryover one (1) week vacation from year to year provided said employee requests the carryover in writing sixty (60) days in advance.

Upon termination of employment, the employee shall receive payment equal to the amount of the vacation pay he would have received had the termination not occurred. If the termination is caused by death, such payment shall be made to the employee's spouse or beneficiary.

Custodians that were hired after July 1 will receive pro-rated benefits on his/her date of hire. In the transition year 2016-2017, all employees in the bargaining unit will be able to carry over unused vacation time until July 2018. For school year 2017-2018, custodial maintenance employees will receive their benefits beginning July 1st.

ARTICLE XII

HOLIDAYS

The following days shall be considered to be paid holidays for full time employees.

New Year's Day	Washington's Birthday
Patriot's Day	Memorial Day
Independence Day	Labor Day
Columbus Day	Veteran's Day
Martin Luther King Day	Thanksgiving Day
Friday after Thanksgiving	Full day before Christmas
Christmas Day	Full Day before New Year's Day
Good Friday if no school all day	Yom Kippur one-half (1/2) day
One-half (1/2) day Good Friday if school is in session for one-half (1/2) day	

Except if any of the above holidays should occur when school must, for any reason, be in session.

Should any holiday fall on an employee's normal day off, the nearest scheduled working day will be considered to be the holiday, except that should the school be in session on the nearest scheduled working day, the day owed will be added to the vacation period. Holiday pay shall be eight (8) hours pay at straight time rate. If a holiday occurs within an employee's vacation period, he shall receive an additional day's vacation with pay.

Any employee required to work on a holiday shall receive, in addition to the regular holiday, an amount equal to one and one-half times his regular rate of pay for all hours worked, but in no case shall this be less than the amount equal to two (2) hours work at double time.

ARTICLE XIII

SICK LEAVE

Employees shall be granted fifteen (15) days of sick leave per year. Said accumulation shall be allowed to accumulate from year to year to an unlimited number of days. By the middle of August each year, all employees will receive written notice of all accumulated sick leave as of the proceeding July 1st.

Sick leave shall be granted for sickness or injury and for absence because of quarantine in the family. In case of absence due to industrial accident, the employer agrees that the employee may draw on his accumulated sick leave in an amount to make up the difference between his regular weekly wage and his weekly payment under Worker's Compensation and this may continue during the said period of unemployment until his accumulated sick leave has been exhausted. After five (5) days absence, a doctor's certificate will be required (due to sickness or accident).

An employee is responsible for the appropriate use of sick leave. Sick leave abuse occurs when an employee uses sick leave for the unauthorized purposes or misrepresents the actual reason for charging an absence to sick leave. Abuse may occur when an employee establishes a pattern of sick leave usage over a period of time such as the day before or after a holiday, on Mondays and Fridays, after pay days, and any specific day, half day, or continued pattern of maintaining zero to near zero balances. In an employee is suspected of sick leave abuse, he/she will be notified by the immediate supervisor. If the pattern continues, progressive discipline will be implemented in the following way:

1 st offense	Written warning
2 nd offense	One (1) day suspension
3 rd offense	Three (3) day suspension
4 th offense	Suspension with intention to dismiss

Absences related to an approved FMLA leave are not deemed as occurrences for the purposes of this section, and are not subject to discipline.

Employees shall be paid a bonus equal to five (5) days for perfect attendance during the Fiscal year's 52 week period. Any member of the Union currently with 40 weeks will have the opportunity to fulfill their 52 weeks. Employees shall be paid a bonus equal to two (2) days' pay for perfect attendance during the fiscal year's consecutive 26 week work period between July 1 and December 31 or January 1 and June 1. The total bonus accumulated over a 52 week period shall not exceed five (5) days per diem. Vacation and personal days shall not be taken into consideration in determination of the 26 week and 52 week consecutive time periods. Days paid shall be based on the per diem rate using the Salary Schedule in Appendix A included herein.

ARTICLE XIV

JURY DUTY

The employer agrees to make up the difference in an employee's wages between a normal week's wages and compensation received for jury duty.

ARTICLE XV

CLOTHING ALLOWANCE

Effective July 1, 2014, employees will be reimbursed up to \$300.00 per custodian and maintenance employee. Receipts will be required before reimbursement can be paid. Approved items to be reimbursed include work boots, sneakers, pants and shorts only.

The employer shall provide each employee up to six (6) standard shirts (long sleeve and short sleeve, depending on each employee's preference) as determined by the employer. The shirts shall be required as standard work attire for all custodians and maintenance staff. Further, the shirts are to be used only on the job in Georgetown. The cost of maintaining the shirts in proper working condition (dry cleaning, laundering, etc.) shall be the responsibility of the employee. The Employer shall replace such shirts on an as needed basis. The employer will provide Winter gear upon hiring for employee use. This includes winter jacket, snow boots, hat and gloves. All items must remain on site, and will be replaced as needed.

ARTICLE XVI

BEREAVEMENT LEAVE

In the event of death in the immediate family of an employee, he will be granted leave in the amount of up to three (3) working days, and such leave will not be charged to sick leave or vacation leave. Additional time may be granted at the discretion of the Superintendent of Schools.

Immediate family shall mean spouse, children, brother, sister, mother, father, mother-in-law, father-in-law, grandchild, employee's grandparents or a relative living in the employee's immediate household.

One (1) day of funeral leave will be granted for the employee to attend the funeral of an aunt, uncle, brother-in-law, sister-in-law or first (1st) cousin.

ARTICLE XVII

PERSONAL LEAVE

Employee shall be granted three (3) days off per year for which he will be paid at his normal rate to conduct imperative personal business or legal obligations, which could only be conducted during regular working hours. Said leave shall not be deducted from any other paid leaves. Except for emergencies, personal leave shall be requested well in advance of the day desired off. Seventy-two hour notice must be provided and the approval of the Superintendent of Schools or his designee is required.

ARTICLE XVIII

SAFETY COMMITTEE CODE

A safety committee composed of two (2) representatives of the Union and two (2) employer personnel will be formed to review safety practices. It may draw up a Safety Code, which both parties to this Agreement agree to enforce, upon acceptance of the School Committee.

ARTICLE XIX

CLASSIFICATION PLAN AND PAY RATES

In this Agreement and made part of it as Appendix A shall be established a Classification and Pay Plan. It shall list all positions covered by this Agreement by title along with wages for each position.

ARTICLE XX

MISCELLANEOUS PROVISIONS

Should any provision of this Agreement be found to be in violation of any Federal or State law by a Court of competent jurisdiction, all other provisions of this Agreement shall remain in full force and effect for the duration of this Agreement, and any benefit, privilege or working condition existing prior to this Agreement not specifically covered by this Agreement shall remain in full force and effect. School Committee rules and regulations shall be inherent in the Agreement by reference.

The parties to this Agreement agree that they shall not discriminate against any person because of race, creed, color, sex or age and that such persons shall receive the full protection of this Agreement.

The Employer, by Union notification to the Superintendent of Schools, agrees to permit representatives of the American Federation of State, County and Municipal Employees, AFL-

CIO, to enter the premises at any time for individual discussion of working conditions with employees, provided they do not interfere with the performance of duties assigned to the employees.

No one outside the bargaining unit shall perform work normally done by those employees within the bargaining unit. This would not apply to part-time or temporary employees within the bargaining unit. This would not apply to part-time or temporary help or those employed under emergency of unusual circumstances.

There will be a Bulletin Board in each school at a place mutually agreed upon by custodians and administration.

Each employee in the bargaining unit shall be allowed two (2) fifteen (15) minute breaks during their shift.

Any permanent part-time employee, who becomes permanent after having completed one (1) year of service as a permanent part-timer, said service shall count for the calculation of vacations.

Employees will be available for training which may occur outside of normal work hours. The employer will make every reasonable effort to give two weeks' notice for said training.

Each year, and at the expense of the employer, the district will provide each employee with one day of professional development which the date and subject matter of the course, seminar or workshop are subject to the approval of the employer. This professional development day is an additional day and is not included towards that employee's vacation, sick or personal leave time. Additional training requested by the employee will be considered provided that it is related to their job description and approved by the employer.

Each employee shall be subject to a performance evaluation on an annual basis. The evaluation is to be performed in accordance with the negotiated performance instrument. The union and administration will develop written job descriptions upon which the evaluation instrument will be based.

ARTICLE XXI

HEALTH AND WELFARE

In the event the Great and General Court sees fit to increase the percentage payable by Cities and Towns toward Blue Cross and Blue Shield Insurance and it is adopted by the Town of Georgetown, the Committee will pay the said percentage adopted by the Town of Georgetown permitted by Law effective the date and year designated by Town Meeting.

ARTICLE XXII

NO STRIKE PROVISION

Custodians agree that for the life of this Agreement, that they will not individually or collectively engage in, induce, or encourage any strike, work stoppage, slowdown or withholding their services.

ARTICLE XXIII

SICK LEAVE BUY BACK

Any custodian about to retire under the provisions and guidelines of the Essex County Retirement Board and covered by this agreement may obtain an increase in compensation due on the custodian's last paycheck by following the established procedure.

Eligible custodians who desire to participate in this program will notify the Superintendent of Schools at least twelve (12) months prior to retirement date.

The final pay check of the custodian concerned will reflect a payment of \$20.00 per day for each sick leave day to which the retiree is entitled computed by subtracting the number of days absent during the last twelve (12) months of employment from the total accumulated sick leave at the time of retirement. Any employee not giving a twelve (12) month notice as defined above who because of special circumstances, does give ninety (90) days' notice of their intent under the provisions listed above may receive sick leave buy back compensation as determined herein. If the Committee because of the ninety-day notice is unable to fund the provisions of the sick leave buy back that fiscal year, said Committee shall fund it the following fiscal year and it shall be paid to the employee as soon as possible in the new fiscal year. Sick leave shall be capped at one hundred fifty (150) days.

ARTICLE XXIV

AGENCY FEE

The Committee agrees to require as a condition of employment that all custodians except those custodians certified as member to the Committee by the Union pay biweekly or by dues deduction to the Union as of the thirtieth (30th) day subsequent to the effective date of this agreement, or the thirtieth (30th) day subsequent to the execution of this agreement, whichever is later, an agency service fee which shall be commensurate with the cost of collective bargaining and contract administration as determined solely by the Union and which amount shall be certified annually to the Committee by the Union.

ARTICLE XXV

REDUCTION IN FORCE

If the Georgetown School Committee decides to reduce the number of positions in the bargaining unit, each of the classifications listed below shall be considered a separate seniority unit:

- a) Custodians
- b) Maintenance

Within each classification, employees shall be laid off in inverse order of seniority in their particular school. Employees targeted for layoff shall have the right to bump the least senior employee within their classification first if they are senior to, and qualified to perform the work at the prevailing rate of pay for such work. The affected employee shall be allowed to bump down to a lower classification bumping the least senior employee if the bumping employee is senior to that employee and qualified to perform the work at the prevailing rate of pay for such work. Any employee affected by the above procedure may elect to take the layoff instead of bumping.

Employees laid off shall be kept on a recall list for one year and a day. It shall be the responsibility of the laid off employee to keep the Superintendent's Office informed of the employees current address. The Superintendent or a designee will send, by registered mail, return receipt requested, notice of any vacancy to which the laid off employee has recall rights. If the employee refuses the recall offer or fails to respond within ten days of either receipt of the notice or first attempt to deliver the notice, whichever is first, all recall rights will terminate.

If there is an increase in any classification in the bargaining unit after a layoff, employees shall be recalled in inverse order of their layoff to position they are qualified to perform at the prevailing rate of pay for such work.

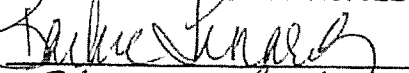
ARTICLE XXVI

DURATION

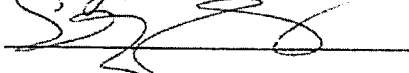
This agreement made and entered into this 15th day of May, 2020.

This agreement, as amended, shall become effective July 1, 2020 and shall terminate June 30, 2023. Either party to this agreement, by written notice to the other party, by October 1, 2022 may request reopening of this agreement. If a new agreement has not been reached by June 30, 2023, this agreement shall remain in full force and effect until a new agreement is reached by the parties.

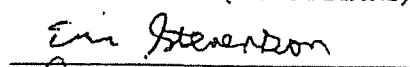
FOR THE SCHOOL COMMITTEE

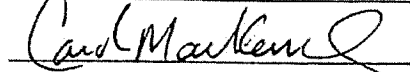






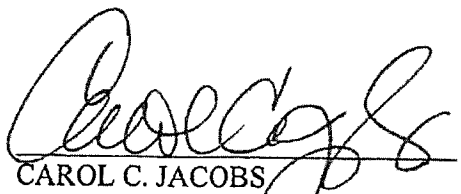
FOR THE UNION (CUSTODIANS)





AFSCME Council 93

WITNESS:



CAROL C. JACOBS
SUPERINTENDENT OF SCHOOLS

APPENDIX A
CUSTODIAL AND MAINTENANCE SALARY SCHEDULE

<u>EFFECTIVE</u>	<u>CUSTODIANS</u>	<u>PB & MHS HEAD CUSTODIANS</u>	<u>LICENSED MAINTENANCE</u>	<u>UNLICENSED MAINTENANCE</u>
7/1/2020	2%			
STEP 1	47,224.31	49,301.51	55,034.22	49,461.32
STEP 2	48,427.89	50,505.10	56,237.78	50,664.88
STEP 3	49,638.59	51,767.72	57,643.73	51,931.49
STEP 4	50,879.55	53,061.92	59,084.83	53,229.78
7/1/2021	2%			
STEP 1	48,168.79	50,287.54	56,134.91	50,450.55
STEP 2	49,396.44	51,515.20	57,362.54	51,678.18
STEP 3	50,631.36	52,803.08	58,796.60	52,970.12
STEP 4	51,897.14	54,123.16	60,266.52	54,294.38
7/1/2022	2%			
STEP 1	49,132.17	51,293.29	57,257.60	51,459.56
STEP 2	50,384.37	52,545.50	58,509.79	52,711.74
STEP 3	51,643.98	53,859.14	59,972.54	54,029.53
STEP 4	52,935.08	55,205.62	61,471.85	55,380.26

LONGEVITY

Ten (10) years of service or more:	\$500.00
Fifteen (15) years of service or more:	\$750.00
Twenty (20) years of service or more:	\$1,000.00

Longevity will be paid on or before October 31.

Any custodian shall be paid maintenance salary for maintenance work done during the summer period. The parties agree to open up negotiations if and when the School Committee wishes to reorganize the Custodial and Maintenance Departments.

The maintenance positions shall receive an additional stipend of \$1,700. This stipend is not included in the maintenance base salary.

The position of elementary head custodian (if appointed), includes a stipend of seven hundred dollars (\$700). The stipend is not included in the custodian base salary.

Effective July 1, 2015 or when the Penn Brook School opens, the elementary head custodian at the Penn Brook School will be placed on the Middle/High School Head custodian pay schedule.

Employees will receive a step increase after completing three, six and nine years of continuous employment in the bargaining unit.

Maintenance workers may be required to obtain a hydraulic license and, once obtained, their salary will be adjusted to reflect this additional expertise.

Name: _____

Date _____

Title: _____

School _____

EVALUATION OF PERFORMANCE IN THE CATEGORIES BELOW SHALL BE RELATED DIRECTLY TO THE EMPLOYEES CURRENT JOB DESCRIPTION.

Ratings: (fields will expand allowing several lines of input.)

1. QUALITY OF WORK _____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

Specific Comments to Support Rating:

2. QUANTITY OF WORK _____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

Specific Comments to Support Rating:

3. CARE/USE OF ASSIGNED EQUIPMENT _____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

Specific Comments to Support Rating:

4. COMPLIANCE WITH SAFETY RULES _____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

Specific Comments to Support Rating:

5. ATTENDANCE/PUNCTUALITY _____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

Specific Comments to Support Rating:

6. USE TIME WISELY _____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

Specific Comments to Support Rating:

7. SHOWS INITIATIVE _____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

Specific Comments to Support Rating:

8. RELIABLE/FOLLOWS THROUGH _____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

Specific Comments to Support Rating:

9. COOPERATION (teamwork, i.e. supervisor/co-workers) _____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

Specific Comments to Support Rating:

10. DISCIPLINARY ACTION DURING THIS EVALUATION PERIOD? _____ No _____ Yes

If yes please describe:

11. VACATION DAYS USED _____ PERSONAL DAYS USED _____ SICK DAYS USED _____

Comments

12. OVERALL PERFORMANCE RATING FOR THIS PERIOD IS:

_____ Exceeding Expectations _____ Meets Expectations _____ Unsatisfactory

General Comments:

Evaluator's Recommendation and Goals _____

Evaluator's Signature: _____ Date: _____

Employee's Signature: _____ Date: _____
(Signature of the employee does not indicate agreement, only that the employee has seen the evaluation and has had an opportunity to attach a statement of disagreement if desired.)

Next Highest Level
Supervisor Signature: _____ Date: _____

Employees Comments:
